

Rev. 4/18

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT
CIVIL APPEAL STATEMENT

Please TYPE. Attach additional pages if necessary.

11th Circuit Docket Number: 23-13396

Caption: American Securities Association et al. v. U.S. Securities and Exchange Commission	District and Division: _____ Name of Judge: _____ Nature of Suit: <u>Agency Petition for Review</u> Date Complaint Filed: _____ District Court Docket Number: _____ Date Notice of Appeal Filed: <u>10/17/2023</u> ☐ Cross Appeal ☐ Class Action Has this matter previously been before this court? ☐ Yes ☒ No If Yes, provide (a) Caption: _____ (b) Citation: _____ (c) Docket Number: _____
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	Attorney Name	Mailing Address	Telephone, Fax, Email
For Appellant: ☐ Plaintiff ☐ Defendant ☒ Other (Specify)	For Citadel Securities LLC: Noel J. Francisco Jacob (Yaakov) M. Roth Brian C. Rabbitt Brinton Lucas David Phillips Joshua T. Hoyt For American Securities Association: J. Michael Connolly	Jones Day 51 Louisiana Ave. NW Washington, D.C. 20001 Consovoy McCarthy PLLC 1600 Wilson Blvd., Suite 1700 Arlington, VA 22209	Firm: (202) 879-3939 Fax: (202) 626-1700 Email: njfrancisco@jonesday.com Firm: (703) 243-9423 Email: mike@consovoymccarthy.com
For Appellee: ☐ Plaintiff ☐ Defendant ☒ Other (Specify)	For Respondent: Daniel Matro	U.S. Securities and Exchange Commission Office of the Secretary 100 F St. NE Mail Stop 1090 Washington, D.C. 20549	Phone: (202) 551-5400 Fax: (202) 772-9324 Email: matrod@sec.gov

Please CIRCLE/CHECK/COMPLETE the items below and on page 2 that apply.

Jurisdiction	Nature of Judgment	Type of Order	Relief
☒ Federal Question ☐ Diversity ☐ US Plaintiff ☒ US Defendant	☐ Final Judgment, 28 USC 1291 ☐ Interlocutory Order, 28 USC 1292(a)(1) ☐ Interlocutory Order Certified, 28 USC 1292(b) ☐ Interlocutory Order, Qualified Immunity ☒ Final Agency Action (Review) ☐ 54(b)	☐ Dismissal/Jurisdiction ☐ Default Judgment ☐ Summary Judgment ☐ Judgment/Bench Trial ☐ Judgment/Jury Verdict ☐ Judgment/Directed Verdict/NOV ☐ Injunction ☒ Other <u>Agency Final Order</u>	Amount Sought by Plaintiff: \$ _____ Amount Sought by Defendant: \$ _____ Awarded: \$ _____ to _____ Injunctions: ☐ TRO ☐ Granted ☐ Preliminary ☐ Denied ☐ Permanent ☐ Denied

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Based on your present knowledge:

- (1) Does this appeal involve a question of First Impression? ☒ Yes ☐ No
What is the issue you claim is one of First Impression? Whether the Order is contrary to law and whether the Order is arbitrary and capricious.
- (2) Will the determination of this appeal turn on the interpretation or application of a particular case or statute? ☒ Yes ☐ No
If Yes, provide
(a) Case Name/Statute 15 U.S.C § 78k-1.
(b) Citation _____
(c) Docket Number if unreported _____
- (3) Is there any case now pending or about to be brought before this court or any other court or administrative agency that
(a) Arises from substantially the same case or controversy as this appeal? ☐ Yes ☒ No
(b) Involves an issue that is substantially the same, similar, or related to an issue in this appeal? ☐ Yes ☒ No
If Yes, provide
(a) Case Name _____
(b) Citation _____
(c) Docket Number if unreported _____
(d) Court or Agency _____
- (4) Will this appeal involve a conflict of law
(a) Within the Eleventh Circuit? ☐ Yes ☒ No
(b) Among circuits? ☐ Yes ☒ No

If Yes, explain briefly:

- (5) Issues proposed to be raised on appeal, including jurisdictional challenges:

(1) Whether the Order should be set aside as contrary to law.

(2) Whether the Order should be set aside as arbitrary and capricious.

I CERTIFY THAT I SERVED THIS CIVIL APPEAL STATEMENT ON THE CLERK OF THE U.S. COURT OF APPEALS FOR THE ELEVENTH CIRCUIT AND

SERVED A COPY ON EACH PARTY OR THEIR COUNSEL OF RECORD, THIS 31st DAY OF October, 2023.

Noel J. Francisco

NAME OF COUNSEL (Print)

/s Noel J. Francisco

SIGNATURE OF COUNSEL